

**Court No. - 3**

**Case :-** WRIT - C No. - 17231 of 2017

**Petitioner :-** Mashooq Ahmad

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Anil Kumar Srivastava

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Krishna Murari,J.**

**Hon'ble Ravindra Nath Kakkar,J.**

Copy of inspection report filed is taken on record.

Heard Sri Anil Kumar Srivastava, learned counsel for the petitioner and Sri Mahboob Alam, learned counsel appearing on behalf of respondent No. 2 to 4.

There was a dispute with respect to electricity bill raised against the petitioner. He made an application under Clause 6.5 of the Electricity Supply Code, 2005. when no decision was taken, he approached this Court by filing Civil Misc. Writ Petition No. 6253 of 2017. A Division Bench of this Court while disposing of the writ petition directed the authority concerned to decide the matter expeditiously.

Thereafter the representation of the petitioner has been considered and rejected vide order dated 27.03.2017.

Learned counsel for the petitioner submits that the issue raised by the petitioner in his representation was not considered in accordance with Clause 6.5 of the Electricity Supply Code, 2005 and thus, the impugned order is bad in law.

Be that as it may, Sri Mahboob Alam points out that there is a OTS scheme, which is in force, whereunder the dispute can be settled. Sri Anil Kumar Srivastava, learned counsel for the petitioner states that the petitioner has made a representation before the authority concerned alongwith a copy of the order dated 09.02.2017, but no decision has been taken.

Let the matter be examined by the authority concerned under the OTS Scheme. The decision

taken on the application made by the petitioner by the authority concerned under the OTS Scheme shall be brought on record by either of the party.

The petition shall be listed after four weeks to enable the parties to do the needful as observed above.

**Order Date :-** 25.4.2017  
RPD.

**Court No. - 35**

**Case :-** WRIT - C No. - 17231 of 2017

**Petitioner :-** Mashooq Ahmad

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Anil Kumar Srivastava

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Bharati Sapru,J.**

**Hon'ble Siddharth,J.**

Supplementary affidavit filed on 15.5.2017 is not on record. Office is directed to trace it out and bring on record when the case is listed next.

List in the next cause list.

**Order Date :-** 7.10.2017

Atul kr. sri.

**Court No. - 1**

**Case :-** WRIT - C No. - 17231 of 2017

**Petitioner :-** Mashooq Ahmad

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Anil Kumar Srivastava

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Govind Mathur,J.**

**Hon'ble Ashok Kumar,J.**

Let this petition for writ be re-notified on 06.12.2017 as an adjournment slip is submitted on behalf of Sri Mahboob Ahmad, learned counsel for the respondents.

**Order Date :-** 27.11.2017

Shubham

**(Ashok Kumar,J.)      (Govind Mathur,J.)**

**Court No. - 1**

**Case :-** WRIT - C No. - 17231 of 2017

**Petitioner :-** Mashooq Ahmad

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Anil Kumar Srivastava

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Govind Mathur,J.**

**Hon'ble Ashok Kumar,J.**

Cases of Sri Mahboob Ahmad, Advocate are reported to be adjourned till 21.12.2017.

List after adjournment.

**Order Date :-** 6.12.2017

pk

**(Ashok Kumar,J.)      (Govind Mathur,J.)**

**Court No. - 40**

**Case :-** WRIT - C No. - 17231 of 2017

**Petitioner :-** Mashooq Ahmad

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Anil Kumar Srivastava

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Amreshwar Pratap Sahi,J.**

**Hon'ble Shashi Kant,J.**

Heard Sri Abhinav Srivastava, learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the respondent-Electricity Department.

The petitioner was aggrieved by excessive billing. He filed a representation and a writ petition before this Court challenging the realization of consumption of electricity by the respondents.

The writ petition was disposed off without interfering calling upon the petitioner to approach the Executive Engineer in terms of Clause 6.5 of the Electricity Supply Code, 2005. The Executive Engineer has now passed an order and in between he also approached the Ombudsman who had directed for installation of a check meter in order to satisfy the grievances of the petitioner.

The Executive Engineer taking notice of all these facts came to the conclusion that there was no defect, and it was according to the correct meter reading that the bills have been raised, but since there was a default in payment certain amount of surcharge was also imposed on the petitioner.

This writ petition was filed and a Division Bench of this Court on taking notice of the submissions relating to an offer of one time settlement passed the following order on 25.04.2017:-

*"Copy of inspection report filed is taken on record.*

*Heard Sri Anil Kumar Srivastava, learned counsel for the petitioner and Sri Mahboob Alam, learned counsel appearing on behalf of respondent No. 2 to 4.*

*There was a dispute with respect to electricity bill raised against the petitioner. He made an application under Clause 6.5 of the Electricity Supply Code, 2005. when no decision was taken, he approached this Court by filing Civil Misc. Writ Petition No. 6253 of 2017. A Division Bench of this Court while disposing of the writ petition directed the authority concerned to decide the matter expeditiously.*

*Thereafter the representation of the petitioner has been considered and rejected vide order dated 27.03.2017.*

*Learned counsel for the petitioner submits that the issue raised by the petitioner in his representation was not considered in accordance with Clause 6.5 of the Electricity Supply Code, 2005 and thus, the impugned order is bad in law.*

*Be that as it may, Sri Mahboob Alam points out that there is a OTS scheme, which is in force, whereunder the dispute can be settled. Sri Anil Kumar Srivastava, learned counsel for the petitioner states that the petitioner has made a representation before the authority concerned alongwith a copy of the order dated 09.02.2017, but no decision has been taken.*

*Let the matter be examined by the authority concerned under the OTS Scheme. The decision taken on the application made by the petitioner by the authority concerned under the OTS Scheme shall be brought on record by either of the party.*

*The petition shall be listed after four weeks to enable the parties to do the needful as observed above."*

It appears that the petitioner was not satisfied with the offer of one time settlement made to the petitioner which was to the effect that the entire surcharge was waived and the petitioner was called upon to deposit the actual consumption charges. In paragraph no. 5 of the supplementary affidavit filed by the petitioner dated 15th May, 2017, these facts have been stated.

The petitioner, however disputes the consumption charges on the ground that the manner in which the billing has been raised in the respective months after 2011, it appears that the demand is being raised on the basis of an incorrect meter reading.

Sri Mahboob Ahmad, learned counsel for the respondent-Electricity Department submits that so far as the meter reading part is concerned, the Ombudsman had directed the installation of a check meter and since no such defect was found as alleged by the petitioner he had to pay the consumption charges. He further submits that as per the direction of the High Court the Executive Engineer has taken a decision on 22nd April, 2017 and, lastly he submits that in spite of the offer under the one time settlement as observed in the order of this Court dated 25th April, 2017, the petitioner has failed to avail of the same and consequently no further relief can be granted to the petitioner.

Having heard learned counsel for the parties and having gone through the pleadings, we find that as per Clause

7.10, the petitioner has the remedy of approaching the Consumer Grievance Redressal Forum against the order of the Executive Engineer dated 22th April, 2017. In such circumstances, where the petitioner is raising factual disputes about actual consumption of electricity as well as other procedural defects, we are not inclined to interfere and keep this matter pending without prejudice to the rights of the petitioner to approach the said forum in the terms referred to herein above.

In the event, the petitioner approaches the forum along with a certified copy of this order within 10 days from today. The forum shall endeavour to dispose off the same expeditiously preferably within six weeks' thereafter.

**Disposed of** with the said directions.

**Order Date :-** 17.4.2018  
M. ARIF